

4.02.01 - Dimensional Standards for Principal Uses in Base Zoning Districts

- A. The following tables describe the dimensional standards pertaining to base zoning districts. Site design requirements apply to the principal building on each site.

Table 1. Lot Design Requirements for Principal Uses in Base Zoning Districts.

Zoning District	Minimum Lot Area (square feet)	Minimum Lot Width (linear feet)		Maximum Building Coverage (%)
GC	None	None		None
A	217,800	165		None
E	98,010	150		None
RSF-1	43,560	150		None
RSF-2	20,000	120		None
RSF-3	10,000	Corner lot 95	Interior lot 80	None
RSF-4	7,500	75	70	None
RSF-5	6,000	70	60	None
RSF-6	6,000	70	60	None
RMF-6 S.F.	6,500	60		None
Duplex	12,000	80		
3+ units	5,500 per unit	100		
RMF-12	43,560	150		None
RMF-16	43,560	150		None
RT	43,560	150		None
VR	6,000	60		None
S.F./MH	10,000	100		
Duplex M.F.	43,560	150		
MH	6,000	60		None
TTRVC Park site lots	20 acres 800	Travel trailers/Park models 40 Campsites 30		None
C-1	20,000	100		None
C-2	15,000	150		None
C-3	10,000	75		None
C-4	10,000	100		None
C-5	10,000	100		None
I	20,000	100		None
BP Park site lots	35 acres 20,000	100		45
CON	217,800	150		None

P	None	None	None
CF	10,000	80	None

Table 2. Building Dimension Standards for Principal Uses in Base Zoning Districts.

Zoning District	Maximum Building Height (feet)	Minimum Distance Between Buildings	Minimum Floor Area of Buildings (square feet)		Floor Area Ratio (%)
GC	35	None	None		None
A	35	None	550		None
E	30	None	1,000		None
RSF-1	35	None	1-story 1,500	2-story 1,800	None
RSF-2	35	None	1,500	1,800	None
RSF-3	35	None	1,000	1,200	None
RSF-4	35	None	800	1,200	
RSF-5	35	None	600	1,200	None
RSF-6	35	None	600	800	None
RMF-6	35	A	750		None
RMF-12	50	A	Efficiency 450 1 BR 600 2+ BR 750		None

RMF-16	75	A	Efficiency 450 1 BR 600 2+ BR 750	None
RT	10 stories, not to exceed 100'	A	300 (max. for hotel units = 500')	None
VR	S.F. 30 MH 30 Duplex 30 M.F. 35	None None None B	None	None
MH	30	None	None	None
TTRVC	30	10	None	None
C-1	35	None	1,000 (ground floor)	None
C-2	35	A	1,000 (ground floor)	None
C-3	50	None	700 (ground floor)	None
C-4	75	A	700 (ground floor)	Hotels .60 Destination resort .80
C-5	35	A	700 (ground floor)	Hotels .60 Destination resort .80
I	50	A	1,000	None
BP	35	A	1,000	None
CON	35	None	None	None

P	C	None	None	None
CF	Towers/antennas 40 Other 30	D	1,000 (ground floor)	None
Overlay Districts	See table of special design requirements applicable to overlay districts.			

A = 50% of the sum of the heights of the **buildings**, but not less than 15 feet.

B = 50% of the sum of the heights of the **buildings**.

C = **Buildings** within 100 feet of an adjoining district are limited to the height of the most restrictive of an adjoining district.

D = 50% of the sum of the heights of the **buildings**, but not less than 25 feet.

1. **Principal Structure Minimum Yard (Setback) Requirements:** Table 2.1, below, provides the minimum **yard** requirements for **principal structures** on conforming **lots** of record in base zoning districts. The following shall apply for all other **lots**:
 - a. **Corner Lots:** Corner lots shall have **front yards** along each **street frontage**. The other **yards** shall be considered side **yards**. See LDC section 2.03.01 for Estates **setbacks**.
 - b. **Nonconforming Lots of Record:** Minimum **yard** requirements for **nonconforming lots of record** are provided in LDC section 9.03.03 A.

**Table 2.1 - TABLE OF MINIMUM YARD REQUIREMENTS
(SETBACKS) FOR BASE ZONING DISTRICTS**

Note as to **setback line** measurement: minimum **setback lines** are typically measured from the legal boundary of a **lot**, regardless of all **easements** burdening a **lot**, with the exception of **easements** that comprise a road **right-of-way** where the minimum **setback line** is to be measured from the road **right-of-way easement** line.

Zoning district	Minimum Front Yard (feet)	Minimum Side Yard (feet)		Minimum Rear Yard (feet)	Public School Requirements
GC	None	None		None	
A	50	30		50	x
E	75	30		75	x
RSF-1	50	30		50	x
RSF-2	40	20		30	x
RSF-3	30	Waterfront 10	Non-waterfront 7.5	25	x
RSF-4	25	10	7.5	25	x
RSF-5	25	10	7.5	20	x
RSF-6	25	10	7.5	20	x
RMF-6	S.F. 25	10	7.5	20	x
	Duplex 25 3 + units 30	10 15	10 15	20 20	
RMF-12	30	a		30	x
RMF-16	b	a		b	x

RT	b	a		b		x
VR	SF./MH	Waterfront	Non-			x
	20	10	waterfront	20		
	Duplex	15	5	30		
	35	15	15	30		
	M.F. 35		15			
MH ¹	25	Waterfront	Non-			x
		10	waterfront	10		
			7.5			
TTRVC ²	10	Waterfront	Non-	Waterfront	Non-	-
		10	waterfront	10	waterfront	
			5		8	
C-1	25	Residential	Non-	Residential	Non-	x
		25	residential	25	residential	
			15		15	
C-2	25	25	15	25	15	x
C-3 ³	c	25	a	25	a	x
C-4 ⁴	d	25	a	25	a	x
C-5 ⁴	25	25	15	25	15	x
I ⁴	25	50	e	50	15	x
BP	50	50	10	50	25	-
CON ⁵	50	50	50	50	50	-

P	f	f	f	f	f	x
CF	25	Residential 25	Non- residential 15	Residential 25	Non- residential 15	x
Overlay Districts	See table of special design requirements for the applicable overlay district located in the appropriate section for that district in chapter 4.					

¹ MH District - additional yard requirements: side yard setback from a public road that is external to the boundary of the park = 50 ft.; the minimum setback on any side from the exterior boundary of the park = 15ft.

² TTRVC District - additional yard requirements: setback from exterior boundary of park = 50 ft.; setback from an external street = 50 ft., setback from an internal street = 25 ft.; setback from any building or other structure = 10 ft.

³ C-3 District - minimum setback on any side that is waterfront = 25 ft.; setback for marinas = none.

⁴ C-4, C-5 and I Districts - minimum setback on any side that is waterfront = 25 ft.; setback for marinas = none; setback on any side adjacent to a railroad right-of-way = none

⁵ Any non-conforming platted **lot** of record in the CON District that existed before November 13, 1991 will be subject to the following standards:

Front yard: 40 feet.

Side yard: ten percent of the lot width, but no more than 20 feet on each side.

Rear Yard: 30 feet.

a = 50% of the building height, but not less than 15 feet.

b = 50% of the building height, but not less than 30 feet.

c = 50% of the building height, but not less than 25 feet.

d = 50% of the building height, but not less than 25 feet. Structures 50 feet or more in height = 25 feet plus one additional foot of setback for each foot of building height over 50 feet.

e = the total of all side yard setbacks shall equal 20% of the **lot** width, with a maximum of 50 feet. No side yard shall be less than 10 feet. Alternative dimensions may be possible when approved through a unified plan of development involving one or more **lots** under common ownership where the yard requirements are met for the unified site but not necessarily for each parcel within the unified site.

f = the yard requirements shall be equal to the most restrictive adjoining district.

x = for principal structures: 50 feet from all property lines; for accessory structures: 25 feet from all property lines.

B. **Open space** requirements. **Usable open space** shall be provided as follows, except as required in the **Rural Fringe Mixed Use District** within the Future Land Use Element of the Growth Management Plan.

1. In residential **developments**, at least 60 percent of the gross area shall be devoted to **usable open space**. This requirement shall not apply to individual single-family **lots** less than 2.5 acres in size.
2. In **developments** of commercial, industrial and mixed use including residential, at least 30 percent of the gross area shall be devoted to **usable open space**. This requirement shall not apply to individual parcels less than five acres in size.
3. Historical/archaeological resources that are to be preserved may be utilized to satisfy required **setbacks**, **buffer** strips or **open space** up to the maximum area required by **development** regulations. Conservation of such historic or archaeological resources shall qualify for any **open space** requirements mandated by the **development** regulations.

C. Specific Requirements for Uses Involving Shopping Carts.

When the operating characteristics of a duly authorized business require the utilization of shopping carts by customers, provision shall be made for outside storage areas to be illustrated on a site **development plan**, and said shopping carts shall be collected at the close of business each day and stored at the front of that business establishment. It shall be the responsibility of the merchant to collect any and all shopping carts that stray from the premises upon which they are intended to be utilized. A name-plate on a shopping cart shall be prima facie evidence of ownership.

D. Exemptions and exclusions from design standards.

1. The height limitations contained in LDC subsection 4.02.01 A. Table 2. Building Dimension Standards for Principal Uses in Base Zoning Districts do not apply to infrastructure in support of the building, such as mechanical penthouses, elevator shafts, stair shafts, mechanical equipment, mechanical screening, spires, belfries, cupolas, flagpoles, antennas, wireless communication facilities, water tanks, fire towers when operated by a branch of government,

ventilators, chimneys, feed storage structures, silos, windmills, airport control towers, or other appurtenances placed above the roof level and not intended for human occupancy or for commercial purposes as provided below:

- a. Structural elements shall be no higher than necessary to accomplish the purpose it is intended to serve.
 - b. The aggregate area of **structures** or appurtenances shall not exceed one-third the area of the supporting roof.
 - c. Where this section conflicts with section 5.05.08, the provisions of section 5.05.08 will control.
 - d. The heights of these **structures** or appurtenances thereto shall not exceed any height limitations prescribed by the Federal Aviation Agency or **airport** zoning regulations within the flight approach zone of **airports**. (See section 2.03.07 C.).
2. In instances where off-**street** parking is provided within the **principal structure**, the County Manager or designee may waive the maximum height requirements to the extent necessary to permit off-**street** parking within the **principal structure**, provided however: (1) the number of off-**street** parking spaces required by this LDC for the use involved may not be reduced; (2) the waiver in height shall not be greater than that necessary to provide for the off-**street** parking within the **principal structure**, with a maximum of two parking levels; (3) the waiver of the maximum height requirements are compatible with the uses on **adjacent** properties; and (4) for each off-**street** parking space permitted within the **principal structure** for which the maximum height waiver is granted, 300 square feet of additional **open space** beyond that which is otherwise required by this LDC shall be provided.
3. Every part of every required **yard** shall be open and unobstructed from thirty (30) inches above the general ground level of the **graded lot** upward to the sky except as hereinafter provided or as otherwise permitted in this LDC.
4. Sills and other architectural and design treatments shall not project over twelve (12) inches into a required **yard**.
5. Movable awnings shall not project over three (3) feet into a required **yard**, provided that where the **yard** is less than five (5) feet in width the projection shall not exceed one-half (1/2) the width of the **yard**.
6. Window- or wall-mounted air conditioning units, chimneys, fireplaces, bay windows, or pilasters shall not project over two (2) feet into a required **yard**.
7. Fire escapes, stairways, and balconies which are unroofed (except as otherwise permitted within this section) and unenclosed shall not project over five (5) feet into a required side or rear **yard** and three (3) feet into a **front yard** of a **multi-family dwelling, hotel or motel** and

not over three (3) feet into a required front, side or rear **yard** of a **single-family** residential **dwelling**. Regardless of the extent of encroachment, the minimum requirement for separation of **structures** shall be maintained.

8. Hoods, canopies, or roof overhangs shall not project over (3) three feet into a required **yard**, but shall not come closer than one (1) foot to the **lot line**.
9. Fences, walls and hedges, subject to section 5.03.02, ground mounted air conditioners, unenclosed pool equipment and well pumps, are permitted in required **yards**, subject to the provisions of section 4.06.00. This includes air conditioners that are ground mounted and those required to be elevated to meet **flood** elevation, including their supporting **structures**, provided the minimum separation of **structures** is maintained.
10. Cornices, eaves or gutters shall not project over three (3) feet into a required **yard**, provided that where the required **yard** is less than six (6) feet in width, such projection shall not exceed one-half (½) the width of the **yard**.
11. Except as otherwise provided by this LDC, when **lots** on both sides of an undeveloped recorded **lot** contain a residential **structure** whose **front yard setback** is less than is now required, the average of the **setbacks** of the two (2) contiguous developed **lots** shall serve to establish the minimum **front yard** requirement for the vacant **lot**.
12. In commercial, industrial and multi-family residential **developments**, carports which are open on all sides may encroach into the required **yards** provided they do not encroach into the required **landscape buffers**, as required by this LDC; and furthermore, if the landscaping is deficient where the carports are proposed, the landscaping must be upgraded to comply with the LDC requirements to the greatest extent possible prior to the issuance of a **building** permit for said carports. This shall be accomplished by a site **development plan** amendment or a site improvement plan approval.
13. Permanent emergency generators may be placed within the rear yard with a 10-foot rear yard setback. Permanent emergency generators may encroach into side yards up to 36 inches. Generators are not permitted to encroach into required front yards. For single-family and two-family dwelling units, see LDC section 5.03.07 for exceptions and requirements. Above-ground fuel tanks for the generators are subject to the same setbacks; however, underground tanks are not subject to setback requirements. In order to reduce noise during required routine exercising of the generators, this exercising is restricted to operating the generator for no more than 30 minutes, once every seven days, during the hours of 9:00 a.m. to 5:00 p.m. and shall not exceed sound level limits for Manufacturing and Industrial uses as set forth in Ordinance No. 90-17, the Noise Ordinance, as amended. All permanent emergency generators must be equipped with sound attenuating housing to reduce noise.
 - a.

Facilities with fuel pumps. Permanent emergency generators and related fuel storage installed at existing facilities with fuel pumps may encroach into any required side or rear yards, provided the encroachment does not create a hazard to pedestrian or vehicular traffic.

- b. Assisted living facilities and nursing homes. Permanent emergency generators and related fuel storage installed at existing assisted living facilities or nursing homes that are subject to LDC section 5.05.04 E. may encroach into any required side or rear yards or buffers, provided the encroachment does not create a hazard to pedestrian or vehicular traffic.

(Ord. No. 04-72, § 3.L; Ord. No. 05-27, § 3.P; Ord. No. 07-67, § 3.I; Ord. No. 10-23, § 3.Q; Ord. No. 12-38, § 3.J; Ord. No. 14-33, § 3.I; Ord. No. 18-18, § 3.G; Ord. No. 18-32, § 3.A; Ord. No. 19-13, § 3.A; Ord. No. 24-05, § 3.K)